the most basic safeguards against custodial torture and violated the right to life. There was substantial support to arrive at this conclusion in existing principles laid down by the Supreme Court. The second half of Justice Pandian's decision, however, did not logically follow from the first. Despite the judges' serious misgivings about Section 15 'at the first impression',[23] the court ultimately decided not to strike it down.

Among the reasons offered by the court for eventually upholding Section 15 were that Parliament was within its authority to enact that section, that terrorism was endangering the integrity of the nation, and that victims and the public were reluctant to come forward to give evidence in the absence of a robust anti-terrorism law. More fundamentally, however, the court appeared to surrender in the face of the 'emergency, problem-solving'[24] legislation that TADA was.[25] To strike down one of the key elements of TADA in a time of crisis was perhaps a step too far. One of the judges (Justice Ramaswamy) dissented, but himself refused to strike down Section 15 with immediate effect – preferring to suspend it for a year to enable Parliament to make amendments to the law.

The court then issued a series of anodyne guidelines in an attempt to regulate the misuse of Section 15. These guidelines included that confessions be recorded in the same language in which the person was examined, that defendants who made confessions be produced before a magistrate without any delay, that the police be required to respect the defendants' right to silence, and that a committee be set up at the central and state levels to review the functioning of TADA.

The court approached other sections of TADA that were challenged in a similar way. Section 19, for example, denied defendants the right to appeal to the state high court, instead providing for a direct appeal from special courts established under TADA to the Supreme Court. By leapfrogging the high court, Section 19 not only deprived defendants of one avenue of appeal, but also had financial implications for those defendants based away from Delhi. This principle would apply even in cases where a defendant who was charged for committing offences under TADA and other criminal legislation was acquitted for the TADA offences but convicted for offences